

June 25, 2014



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 13127
(SIXTH REVISION)

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of ammonium perchlorate and sodium perchlorate in lined flexible intermediate bulk containers. This special permit provides no relief from the Hazardous Materials Regulations (HMR) or the International Maritime Dangerous Goods (IMDG) Code other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
 - d. This special permit serves as an "approval" under Chapter 4.1, Section 4.1.3.7 and Chapter 7.9, Section 7.9.2 of the IMDG Code and as a Competent Authority Approval as defined in 49 CFR 107.1.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180 and the IMDG Code.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.101 Hazardous Materials Table, Column 7, Special Provision IB6 and 172.102(c)(4), Table 1. - IBC CODES, IBC Code IB6 and the Chapter 3.2, Column 8 Instruction IBC06 and Chapter 4.1, Packing Instruction IBC06 of the IMDG Code in that flexible IBCs are not authorized, except as authorized herein.

5. BASIS: This special permit is based on the application of American Pacific Corporation dated March 5, 2014, submitted in accordance with § 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Ammonium perchlorate ¹	5.1	UN1442	II
Potassium perchlorate	5.1	UN1489	II
Sodium perchlorate	5.1	UN1502	II

¹ Ammonium perchlorate may not meet the definition and criteria for Class 1 (explosive) material (see 49 CFR § 173.50).

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packaging is a lined flexible intermediate bulk container (FIBC) authorized in § 172.102(c)(4), Table 1. -IBC CODES, IBC Code IB8. Under the terms of the IMDG Code, prescribed packaging must also conform to Chapter 4.1, Packing Instruction IBC06 and special packing provision B2 except that an FIBC that meets the terms of this special permit may be used and only closed cargo transport units may be used to carry these FIBCs.

b. OPERATIONAL CONTROLS -

(1) Each FIBC must be certified and marked to meet the requirements for transporting packing group II solid hazardous materials.

(2) The liner must have a minimum thickness of 3 mil.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or

June 25, 2014

change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit, the HMR, and the IMDG Code.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Each FIBC must be marked "DOT-SP 13127" as specified in §§ 172.302(b) and (c).

d. This special permit in no way affects the need to obtain any required authorizations from other agencies of the United States Government or from the competent authorities of countries of transit and destination.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle and cargo vessel used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

June 25, 2014

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, 400 Seventh Street, SW, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: NICKS